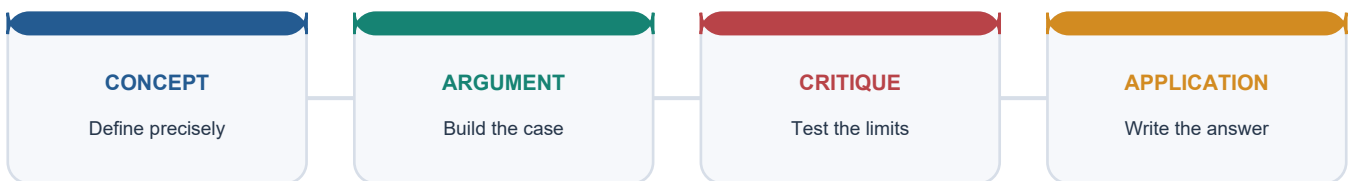


SOLVED PRACTICE WORKBOOK

UNION TERRITORIES - SOLVED PRACTICE WORKBOOK

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

UNION TERRITORIES - SOLVED PRACTICE WORKBOOK

PRACTICE WORKBOOK - BASIC MCQS / REMEDIATION

This section contains exactly 32 original MCQs before the PYQs. The answer sequence is ABCD repeated eight times. Every option has a separate explanation and every question has a unique examiner trap.

MCQ 1

As on 7 September 2026, which statement is correct?

A. India has eight Union Territories. B. Dadra and Nagar Haveli and Daman and Diu are separate UTs. C. Only Delhi and Puducherry have legislatures. D. Ladakh has a legislature.

Answer: A.

Option explanations

- A: Correct: the current total is eight.
- B: The two territories were merged into one UT from 26 January 2020.
- C: J&K also has a legislature and an elected government.
- D: Ladakh is a UT without a legislature.

Examiner trap 1: Count after both the 2019 split and the 2020 merger.

MCQ 2

The general constitutional rule for administration of Union Territories is contained in:

A. Article 238. B. Article 239. C. Article 240. D. Article 246(4).

Answer: B.

Option explanations

- A: Article 238 was repealed and does not supply the current rule.
- B: Correct: Article 239 places administration through the President and an appointed Administrator.
- C: Article 240 is the narrower regulation power for specified UTs.
- D: Article 246(4) is Parliament's all-subject legislative competence for territories not included in a State.

Examiner trap 2: Administration, regulation and parliamentary competence are three different provisions.

MCQ 3

Which statement best states the legal significance of the title 'Lieutenant Governor'?

A. It always gives powers identical to a State Governor. B. It necessarily implies an elected territorial legislature. C. Its powers depend on the governing Constitution, Act and rules rather than the title alone. D. It is a title elected by the territorial Assembly.

Answer: C.

Option explanations

- A: A State Governor and a UT LG occupy different constitutional frameworks.
- B: A&N and Ladakh use LGs but have no Assembly.
- C: Correct: designation does not determine the legal field or discretion.
- D: The President appoints the Administrator/LG.

Examiner trap 3: Never infer power merely from nomenclature.

MCQ 4

Parliament's general power to legislate on a State List matter for a territory not included in a State flows from:

A. Article 239A. B. Article 239B. C. Article 240. D. Article 246(4).

Answer: D.

Option explanations

- A: Article 239A enables specified local legislatures and Councils.
- B: Article 239B concerns ordinances.
- C: Article 240 concerns Presidential regulations for specified UTs.
- D: Correct: Article 246(4) expressly reaches any matter, including the State List.

Examiner trap 4: Article 240 is not the source of Parliament's general State-List power.

MCQ 5

Article 239A currently authorises Parliament by law to create a legislature or Council of Ministers for:

A. Puducherry, with its provisions also applied to J&K by section 13 of the 2019 Act. B. Delhi alone. C. Every UT automatically. D. Only legislature-free UTs.

Answer: A.

Option explanations

- A: Correct: the constitutional text names Puducherry and section 13 applies it to J&K.
- B: Delhi's special source is Article 239AA.
- C: The provision is enabling and territorially specific, not automatic.
- D: It creates representative institutions rather than targeting only legislature-free administration.

Examiner trap 5: Separate the current Article text from statutory application to J&K.

MCQ 6

Article 239A was inserted by the:

A. Seventh Amendment Act, 1956. B. Fourteenth Amendment Act, 1962. C. Sixty-ninth Amendment Act, 1991. D. Twenty-seventh Amendment Act, 1971.

Answer: B.

Option explanations

- A: The Seventh Amendment created the modern Part VIII framework.
- B: Correct: the Fourteenth Amendment inserted Article 239A.
- C: The Sixty-ninth Amendment inserted Delhi's Articles 239AA and 239AB.
- D: The Twenty-seventh Amendment inserted Article 239B and amended Article 240.

Examiner trap 6: Match each amendment to its distinct UT mechanism.

MCQ 7

Failure of constitutional machinery in NCT Delhi is specifically governed by:

A. Article 356 alone. B. Article 239B. C. Article 239AB. D. Section 73 of the J&K Reorganisation Act.

Answer: C.

Option explanations

- A: Article 356 is the State provision; Delhi has its own text.
- B: Article 239B is a recess ordinance power.
- C: Correct: Article 239AB permits suspension of specified Delhi arrangements.
- D: Section 73 is the separate J&K statutory mechanism.

Examiner trap 7: AB denotes Delhi breakdown; B denotes ordinance.

MCQ 8

Under Article 239B, Puducherry's Administrator may promulgate an ordinance when:

A. The Assembly is dissolved. B. The Assembly is in session. C. No Presidential instructions have been obtained. D. The Assembly is not in session, immediate action is necessary and prior Presidential instructions are obtained.

Answer: D.

Option explanations

- A: The second proviso bars the power during dissolution.
- B: An ordinance is unnecessary and unavailable while the House is in session.
- C: Prior Presidential instructions are mandatory.
- D: Correct: all three conditions reflect the constitutional text.

Examiner trap 8: Recess, dissolution and suspension are legally different conditions.

MCQ 9

Which is part of Article 240's direct constitutional list?

A. Andaman and Nicobar Islands. B. Chandigarh. C. NCT Delhi. D. Jammu and Kashmir UT.

Answer: A.

Option explanations

- A: Correct: A&N is expressly listed.
- B: Chandigarh is absent from Article 240.
- C: Delhi is governed by Article 239AA and related law.
- D: J&K with legislature is governed by the 2019 Act, not Article 240's list.

Examiner trap 9: Memorise the enumerated territories rather than all UTs.

MCQ 10

Which statement about Chandigarh is correct?

A. It has an Article 239AA legislature. B. It is administered under Article 239 but is not in Article 240's specified regulation set. C. It is part of Punjab for all constitutional purposes. D. It elects members to the Rajya Sabha.

Answer: B.

Option explanations

- A: Article 239AA applies only to Delhi.
- B: Correct: Chandigarh uses Article 239 administration without Article 240 enumeration.
- C: It is a separate UT and shared capital, not territory of Punjab.
- D: The Fourth Schedule allocates no Council of States seat to Chandigarh.

Examiner trap 10: Shared capital does not erase separate UT status.

MCQ 11

Article 241 primarily concerns:

A. UT ordinances. B. Statehood conversion. C. High Courts for Union Territories and extension or exclusion of jurisdiction. D. Presidential regulations.

Answer: C.

Option explanations

- A: Ordinances are governed by Article 239B or specific statutes.
- B: Territorial reorganisation is addressed through Articles 1-4 and parliamentary law.

- C: Correct: Article 241 is the UT High Court provision.
- D: Regulations are governed by Article 240.

Examiner trap 11: Article 241 is institutional jurisdiction, not territorial law-making.

MCQ 12

Which Union Territory has a separate High Court of its own?

A. Puducherry. B. Jammu and Kashmir. C. Chandigarh. D. NCT Delhi.

Answer: D.

Option explanations

- A: Puducherry is under Madras High Court.
- B: J&K shares a common High Court with Ladakh.
- C: Chandigarh is under Punjab and Haryana High Court.
- D: Correct: Delhi has its own High Court.

Examiner trap 12: A common High Court and a separate UT High Court are not the same.

MCQ 13

The merger of Dadra and Nagar Haveli with Daman and Diu took effect on:

A. 26 January 2020. B. 31 October 2019. C. 1 November 1956. D. 1 February 1992.

Answer: A.

Option explanations

- A: Correct: the merger statute commenced on 26 January 2020.
- B: This is the appointed day for J&K and Ladakh UTs.
- C: This is the Seventh Amendment reorganisation date.
- D: This is the commencement of Delhi's special NCT scheme.

Examiner trap 13: The Act year 2019 and effective date 2020 are different.

MCQ 14

Which set contains all current UTs with legislatures?

A. Delhi and Puducherry only. B. Delhi, Puducherry and Jammu and Kashmir. C. Delhi, J&K and Ladakh. D. Puducherry, Chandigarh and J&K.

Answer: B.

Option explanations

- A: This omits J&K's elected statutory Assembly.
- B: Correct: these are the three legislative UTs.
- C: Ladakh has no Assembly.
- D: Chandigarh has no territorial legislature.

Examiner trap 14: The 2024 J&K election makes the three-legislature answer operationally visible.

MCQ 15

Article 239AA excludes which three headline State List subjects from Delhi's Assembly?

A. Agriculture, irrigation and markets. B. Services, finance and local government. C. Public order, police and land. D. Prisons, public health and education.

Answer: C.

Option explanations

- A: These are not the three constitutional exclusions.
- B: Services is Entry 41 and was central to separate litigation.
- C: Correct: Entries 1, 2 and 18 are excluded.
- D: These subjects are not the three blanket exclusions.

Examiner trap 15: Also remember related Entries 64, 65 and 66 insofar as they concern 1, 2 and 18.

MCQ 16

If a President-assented Delhi Assembly law conflicts with parliamentary law in the same field, which is most accurate?

A. The Delhi law can never operate. B. The Delhi law permanently binds Parliament. C. The LG alone chooses which law applies. D. The Delhi law may prevail in NCT Delhi, but Parliament may later add to, amend, vary or repeal it.

Answer: D.

Option explanations

- A: The first proviso creates an assent qualification.
- B: The second proviso preserves later parliamentary power.
- C: The conflict rule is constitutional, not a free LG choice.
- D: Correct: this states both temporary territorial priority and later override.

Examiner trap 16: Presidential assent gives priority, not permanent immunity.

MCQ 17

The 2018 Delhi Constitution Bench held that:

A. The LG has no independent decision-making power within the elected sphere and reference must not become routine. B. Delhi became a full State. C. Parliament lost Article 246(4) power. D. Land moved to the Delhi Assembly.

Answer: A.

Option explanations

- A: Correct: aid and advice is the rule, with exceptional reference.
- B: The Court did not confer Statehood.
- C: Parliamentary competence remained intact.
- D: Land remains an excluded Entry 18 field.

Examiner trap 17: Representative primacy is bounded by Delhi's constitutional field.

MCQ 18

The 2023 Delhi services judgment used the 'triple chain of accountability' to connect:

A. President, Parliament and Supreme Court. B. Civil servants, ministers, the legislature and the electorate. C. Police, land and public order. D. NCCSA, ECI and Finance Commission.

Answer: B.

Option explanations

- A: That is not the administrative accountability chain used by the Court.
- B: Correct: officer accountability runs through ministers and the House to voters.

- C: These are reserved subjects, not accountability actors.
- D: These institutions do not form the Court's triple-chain reasoning.

Examiner trap 18: Services doctrine is about democratic control over implementation.

MCQ 19

As on 7 September 2026, the safest statement on Delhi services is:

A. The May 2023 judgment alone is the complete current rule. B. The 2023 Act has been finally struck down. C. Act 19 of 2023 remains operative while its constitutional challenge is unresolved. D. Delhi has no executive authority over any non-reserved field.

Answer: C.

Option explanations

- A: Later parliamentary legislation must be included.
- B: No final official merits judgment striking it down was located.
- C: Correct: this separates operative law from pending adjudication.
- D: Article 239AA and the 2018 doctrine preserve an elected sphere.

Examiner trap 19: Always sequence constitutional holding, later statute and pending challenge.

MCQ 20

Under Act 19 of 2023, persistent disagreement over an NCCSA recommendation is finally decided by the:

A. Chief Minister alone. B. Chief Secretary. C. President directly in every case. D. Lieutenant Governor under the statutory mechanism.

Answer: D.

Option explanations

- A: The Chief Minister chairs but does not possess a unilateral vote.
- B: The Chief Secretary is one member.
- C: The statutory process routes the matter to the LG rather than requiring direct Presidential decision in every instance.
- D: Correct: the LG's decision is final after the statutory disagreement process.

Examiner trap 20: NCCSA majority and final LG decision are distinct stages.

MCQ 21

Puducherry's Assembly composition under the 1963 Act is best described as:

A. Thirty elected members plus up to three Central Government nominees. B. Seventy elected members only. C. Ninety elected members plus five nominees. D. A wholly nominated legislature.

Answer: A.

Option explanations

- A: Correct: section 3 supplies this structure.
- B: Seventy is Delhi's Assembly strength.
- C: Ninety is the elected J&K constituency count used in 2024.
- D: Puducherry has a directly elected core.

Examiner trap 21: The nominees are additional full members, not non-voting advisers.

MCQ 22

In K. Lakshminarayanan (2018), the Supreme Court upheld:

A. A Delhi services ordinance. B. Central nomination of Puducherry Assembly members without mandatory Chief Minister concurrence. C. J&K's conversion into a UT. D. Article 240 regulations for Chandigarh.

Answer: B.

Option explanations

- A: The case concerned Puducherry nominees, not Delhi services.
- B: Correct: the nomination power and nominees' voting status were upheld.
- C: That issue arose in the Article 370 litigation.
- D: Chandigarh is not in Article 240.

Examiner trap 22: Do not turn a nomination judgment into a general unlimited-LG doctrine.

MCQ 23

J&K Assembly competence under section 32 excludes:

A. Land and agriculture. B. Services and taxation. C. Public order and police. D. All State List subjects.

Answer: C.

Option explanations

- A: Land is not a blanket exclusion.
- B: These are not the two section 32 exclusions.
- C: Correct: Entries 1 and 2 are excluded.
- D: The Assembly has a broad applicable State and Concurrent List field.

Examiner trap 23: Delhi excludes three headline fields; J&K excludes two.

MCQ 24

Which comparison is constitutionally accurate?

A. Both Delhi and J&K exclude land. B. Neither Delhi nor J&K excludes police. C. Puducherry excludes all three Delhi reserved subjects. D. Delhi excludes land, whereas J&K section 32 does not blanket-exclude it.

Answer: D.

Option explanations

- A: J&K does not have Delhi's Entry 18 exclusion.
- B: Both exclude police.
- C: Section 18 of the 1963 Act has no equivalent blanket three-entry exclusion.
- D: Correct: this is the key close-option distinction.

Examiner trap 24: Do not copy Delhi's field into the J&K answer.

MCQ 25

Which event established a functioning elected J&K UT Assembly after reorganisation?

A. The 2024 Assembly election conducted by the ECI. B. The 2019 appointed day alone. C. The DNHDD merger. D. The 69th Amendment.

Answer: A.

Option explanations

- A: Correct: the 2024 election restored elected territorial government.
- B: The 2019 Act created the institution but elections followed later.
- C: That merger concerns another UT.

- D: The 69th Amendment concerns Delhi.

Examiner trap 25: Creation of an Assembly in law and constitution of an elected House are different stages.

MCQ 26

The Supreme Court's 2023 Article 370 judgment stated that J&K Statehood should be restored:

- A. By a fixed date of 30 September 2024. B. At the earliest and as soon as possible, without fixing a Statehood date.
C. Only after a constitutional amendment. D. Automatically upon the 2024 election.

Answer: B.

Option explanations

- A: 30 September 2024 was the election deadline, not a Statehood deadline.
- B: Correct: the formulation gave no fixed date.
- C: Parliamentary reorganisation law, not necessarily Article 368, controls the status change.
- D: Election did not legally convert the UT into a State.

Examiner trap 26: Separate the election deadline from the Statehood assurance.

MCQ 27

Ladakh's Presidential regulation route is expressly supplied by:

- A. Article 239AA. B. Article 239B. C. Section 58 of the J&K Reorganisation Act read with Article 240. D. The Government of UT Act, 1963.

Answer: C.

Option explanations

- A: Article 239AA is Delhi-specific.
- B: Article 239B is the Puducherry recess-ordinance provision.
- C: Correct: section 58 authorises Article 240 regulations for Ladakh.
- D: The 1963 Act principally structures Puducherry.

Examiner trap 27: Ladakh is not textually listed in Article 240 itself.

MCQ 28

The common High Court for J&K and Ladakh is established by:

- A. Article 239B. B. The Delhi High Court Act. C. Article 240 alone. D. Section 75 of the J&K Reorganisation Act, consistently with Article 241.

Answer: D.

Option explanations

- A: Article 239B supplies a recess ordinance route, not a High Court.
- B: The Delhi statute has no role in J&K/Ladakh.
- C: Article 240 concerns regulations, not court allocation.
- D: Correct: section 75 supplies the common-court rule.

Examiner trap 28: Use the specific reorganisation section with the general Article 241 framework.

MCQ 29

Which pair adapts Panchayat and Municipality constitutional parts to Union Territories?

A. Articles 243L and 243ZB. B. Articles 239AB and 239B. C. Articles 240 and 241. D. Articles 330A and 334A.

Answer: A.

Option explanations

- A: Correct: these provisions apply Parts IX and IXA to UTs subject to Presidential adaptations.
- B: These concern Delhi breakdown and ordinances.
- C: These concern regulations and High Courts.
- D: These concern women's representation and activation.

Examiner trap 29: Territorial legislatures are not the only form of elected government in a UT.

MCQ 30

Which UTs receive seats in the Council of States under the current Fourth Schedule?

A. All eight UTs. B. Delhi, Puducherry and Jammu and Kashmir. C. Only Delhi. D. Delhi and Chandigarh.

Answer: B.

Option explanations

- A: The Fourth Schedule does not allocate seats to every UT.
- B: Correct: allocations are Delhi 3, Puducherry 1 and J&K 4.
- C: Puducherry and J&K also have allocations.
- D: Chandigarh has no Rajya Sabha allocation.

Examiner trap 30: Lok Sabha representation and Rajya Sabha allocation follow different rules.

MCQ 31

The 106th Amendment clauses inserted into Article 239AA concerning women become operational:

A. Immediately for every Delhi seat from 2023. B. Only by an LG notification. C. After the census-linked delimitation condition in Article 334A is satisfied. D. Only after Delhi becomes a State.

Answer: C.

Option explanations

- A: The inserted text does not mean immediate seat reservation.
- B: The LG is not the constitutional trigger.
- C: Correct: Article 334A links operation to delimitation after publication of the relevant census figures.
- D: Statehood is not required.

Examiner trap 31: Distinguish constitutional insertion from operational commencement.

MCQ 32

Which statement best captures the UT system?

A. Every UT is governed identically from New Delhi. B. Every UT with a legislature is constitutionally a State. C. Administrator titles determine the full legal design. D. Union responsibility is common, but legislative, executive, judicial and fiscal arrangements are asymmetric.

Answer: D.

Option explanations

- A: Part VIII and special statutes create substantial variation.
- B: A territorial legislature does not confer Statehood.
- C: Titles are not a source of complete power.

- D: Correct: asymmetry is the defining institutional fact.

Examiner trap 32: The best answer rejects both uniform-central-rule and disguised-State simplifications.

PYQS AND ANSWER PRACTICE

VERIFIED PYQS

PYQ 1 - UPSC CSE Mains 2018, GS-II, Question 11

Question: Whether the Supreme Court Judgement (July 2018) can settle the political tussle between the Lt. Governor and elected government of Delhi? Examine.

15 marks | 250 words | Verified official-paper wording

Demand: Identify the legal character, state the controlling provision or holding, analyse the institutional consequence, and end with the exact qualification.

Model answer

The July 2018 Constitution Bench settled a constitutional principle, not the whole politics of shared rule. Article 239AA gives Delhi an elected Assembly and Council of Ministers for State and Concurrent List matters except public order, police and land. The Court held that executive power ordinarily follows this legislative field, the Lieutenant Governor has no independent decision-making power, and the proviso permitting reference to the President must be exceptional rather than routine. These holdings protect collective responsibility and prevent an unelected parallel executive.

Yet the judgment could not remove structural conflict. Parliament retains competence over every NCT matter, the three reserved fields remain Union-controlled, and Article 239AA preserves a difference-of-opinion route. The May 2023 services Constitution Bench applied democratic accountability to Entry 41, but Parliament then enacted Act 19 of 2023, creating NCCSA and giving the LG the final statutory decision after persistent disagreement. Its constitutional challenge remained unresolved on 7 September 2026.

Thus, the judgment settled the norm of elected primacy within Delhi's allotted field, but not every legal or political contest. Durable settlement requires textually confined Union intervention, reasoned references, institutional dialogue and accountability for delay.

Final-key discipline: This is a Mains question; no objective answer key is invented.

PYQ 2 - UPSC CSE Mains 2025, GS-II, Question 4

Question: Discuss the nature of Jammu and Kashmir Legislative Assembly after the Jammu and Kashmir Reorganization Act, 2019. Briefly describe the powers and functions of the Assembly of the Union Territory of Jammu and Kashmir.

10 marks | 150 words | Verified from locally held official paper; spelling retained

Demand: Identify the legal character, state the controlling provision or holding, analyse the institutional consequence, and end with the exact qualification.

Model answer

The Jammu and Kashmir Assembly is an elected legislature of a Union Territory, not a State legislature. The 2019 Act applies Article 239A through section 13 and creates the Assembly under section 14; the 2024 election made the institution operational.

Section 32 authorises laws on applicable State and Concurrent List matters except public order and police. Land is not blanket-excluded. The House legislates, debates policy, votes grants, authorises appropriation, examines audit, exercises privileges and holds the Chief Minister-led Council collectively responsible. Bills remain subject to Lieutenant-Governor assent or reservation, while section 35 preserves parliamentary priority.

The institution therefore restores representative government but not State-level federal autonomy. Parliament can legislate on every UT field, and section 53 preserves significant LG discretion, including All India Services and the Anti-Corruption Bureau. As on 7 September 2026, J&K had an elected government but remained a Union Territory; the Supreme Court's Statehood assurance had not become a conversion law.

Final-key discipline: This is a Mains question; no objective answer key is invented.

ORIGINAL MAINS PRACTICE - EXACTLY SIX MODELS

Original Mains 1 - 10 marks - Explain why India uses different models of Union Territory administration.

Word ceiling: 150

Model answer

Union Territories permit differentiated territorial governance where a full State model may not match national-capital, strategic, historical or scale considerations. Article 239 supplies the common default: the President administers through an appointed Administrator. Article 240 adds direct regulation for specified territories, while Article 246(4) gives Parliament competence over every legislative field.

The Constitution and Parliament then vary democratic depth. Delhi has a constitutionally entrenched Assembly under Article 239AA; Puducherry has a statutory Assembly under Article 239A and the 1963 Act; J&K has a statutory Assembly under the 2019 Act. A&N, Chandigarh, DNHDD, Ladakh and Lakshadweep have no territorial legislature.

This asymmetry can fit distinct needs, but divided authority can blur accountability. Therefore, Union control should be textually grounded and proportionate, while elected institutions should control the staff, finance and implementation tools attached to their lawful sphere.

Original Mains 2 - 10 marks - Distinguish Articles 239AB, 239B and 240.

Word ceiling: 150

Model answer

The three provisions address different failures or gaps. Article 239AB is Delhi's failure-of-constitutional-machinery clause. If NCT administration cannot operate under Article 239AA or its implementing law, the President may suspend specified provisions and make consequential arrangements.

Article 239B is a recess ordinance power for Puducherry's Administrator, adapted to Delhi by Article 239AA(8). It requires immediate necessity and prior Presidential instructions; the ordinance must be laid before the Legislature and ordinarily expires six weeks after reassembly. It cannot be used during dissolution or suspended functioning.

Article 240 is primary Presidential regulation-making for specified UTs: A&N, Lakshadweep, DNHDD and conditionally Puducherry; section 58 extends the route to Ladakh. A regulation has parliamentary-Act force and may amend applicable law.

Thus, 239AB restructures Delhi government during breakdown, 239B temporarily legislates during recess, and 240 directly legislates for enumerated territories.

Original Mains 3 - 15 marks - Examine the current constitutional and statutory position on control of services in Delhi.

Word ceiling: 250

Model answer

Delhi services must be explained chronologically. Article 239AA gives the Assembly State and Concurrent List competence except public order, police and land, while preserving Parliament's power. In 2018, the Constitution Bench held that the Lieutenant Governor ordinarily acts on ministerial aid and advice within this allotted field, has no independent decision-making power, and may not refer every disagreement to the President.

On 11 May 2023, another Constitution Bench held that Entry 41 services was not among the three express exclusions. It treated NCT Delhi as sui generis and linked officer control to the triple chain of accountability: civil servants answer to ministers, ministers to the Assembly, and the Assembly to voters. Services connected with reserved subjects remained outside NCT control.

Parliament then enacted the Government of NCT of Delhi (Amendment) Act, 2023. It created NCCSA, comprising the Chief Minister, Chief Secretary and Principal Home Secretary. Covered transfer, posting and vigilance recommendations are decided by majority; the LG may return a recommendation with reasons and has the final statutory decision if disagreement persists.

Therefore, the constitutional holding supports elected control, but Act 19 of 2023 supplies the current operative machinery. As on 7 September 2026, no final official Supreme Court merits judgment striking down that Act was located; its challenge remained pending.

Original Mains 4 - 15 marks - Compare the democratic design of Puducherry and Jammu and Kashmir.

Word ceiling: 250

Model answer

Puducherry and Jammu and Kashmir are statutory legislative Union Territories linked to Article 239A, but their designs are not identical. Puducherry's institutions arise through the Government of Union Territories Act, 1963. Its thirty elected members may be joined by up to three Central Government nominees. Section 18 grants applicable State and Concurrent List competence without Delhi's blanket three-subject exclusion; section 21 preserves parliamentary supremacy.

J&K's institutions arise through the Reorganisation Act, 2019. Section 13 applies Article 239A and section 14 creates the Assembly. Section 32 grants applicable State and Concurrent List competence except public order and police; land is not blanket-excluded. Section 35 preserves parliamentary priority. The 2024 election established a functioning ninety-constituency elected House.

Both have Councils collectively responsible to their Assemblies, budgets, appropriation and law-making. Yet Union supervision differs. Puducherry uses the 1963 Act's advice, difference and Presidential-control framework; *K. Lakshminarayanan* upheld Central nomination and nominees' full voting rights. J&K section 53 expressly reserves out-of-field matters, All India Services and the Anti-Corruption Bureau to LG discretion, reinforced by 2024 business rules.

Thus, both provide bounded self-government, but J&K's security and personnel reservations make its current executive architecture more explicitly Union-weighted.

Original Mains 5 - 20 marks - Critically analyse asymmetric governance of India's Union Territories and suggest reforms.

Word ceiling: 250

Model answer

Union Territory asymmetry combines one constitutional default with several institutional models. Article 239 places administration through the President; Article 246(4) gives Parliament all-subject competence. Yet Delhi has Article 239AA institutions, Puducherry and J&K have statutory legislatures, and five UTs lack territorial legislatures. Article 240 applies only to specified territories, while Article 241 produces separate or shared High Court arrangements.

The design has functional strengths. National-capital security supports Delhi's reserved fields; island and frontier territories require Union coordination; Puducherry's history and J&K's transition justify tailored institutions. Parliamentary representation, local bodies under Articles 243L and 243ZB, and judicial review prevent the legislature/no-legislature distinction from becoming a democracy/no-democracy binary.

However, asymmetry can divide power from responsibility. Delhi's services litigation shows that ministers may face voters while officer control lies elsewhere. Puducherry's nominated members can affect confidence. J&K's police, public-order, AIS and ACB arrangements create a strong LG pole. Repeated reference, unclear business routing and opaque delay can convert safeguards into obstruction.

Reform should be calibrated: publish subject and business-allocation maps; require written reasons and time limits for references; align officer, budget and service responsibility where law permits; strengthen Assembly committees and local bodies; and periodically review whether exceptional Union control remains proportionate.

The objective is not mechanical uniformity or automatic Statehood, but transparent asymmetry: Union guardianship confined to justified fields and effective representative government elsewhere.

Original Mains 6 - 20 marks - Analyse the constitutional significance of the 2019 J&K reorganisation and the subsequent restoration of elected government.

Word ceiling: 250

Model answer

The 2019 reorganisation was constitutionally significant because it changed both territory and federal status. Acting through parliamentary legislation, the former State was divided from 31 October 2019 into J&K, a Union Territory with a legislature, and Ladakh, a Union Territory without one. Section 13 applies Article 239A to J&K; section 14 creates its Assembly; section 58 places Ladakh under an LG and Article 240 regulation route.

J&K's Assembly is representative but not State-equivalent. Section 32 grants applicable State and Concurrent List competence except public order and police; section 35 preserves parliamentary supremacy. The House votes supply, authorises appropriation, debates policy and holds the Council collectively responsible. Section 53 nevertheless gives the LG discretion outside the Assembly field and over All India Services and the Anti-Corruption Bureau.

In *In Re Article 370* (2023), the Supreme Court directed Assembly elections by 30 September 2024 and Statehood restoration at the earliest. It did not finally adjudicate J&K's conversion after recording the Union's assurance, while Ladakh's creation remained undisturbed. The ECI conducted the 2024 election, restoring an elected Assembly and Council.

This restored democratic accountability but not Statehood. As on 7 September 2026, J&K remained a UT. The constitutional challenge is therefore to make the statutory government effective while Parliament fulfils the Statehood assurance through lawful territorial reorganisation.